

Anju Sharma vs Subhash Sharma on 24 August, 2017

Author: Virendra Kumar Mathur

Bench: Virendra Kumar Mathur

HIGH COURT OF JUDICATURE FOR RAJASTHAN AT
JODHPUR

S.B. Civil Transfer Appl. No. 8 / 2017

Anju Sharma W/o Subhash Sharma D/o Shanti Lal Sharma, Aged
About 30 Years, R/o H. No. 29, Mahaveer Colony Chittorgarh,
Tehsil & District Chittorgarh (raj.)

---Petitioner

Versus

Subhash Sharma S/o Jagdish Chandra Sharma, R/o Changeri
Road, Fateh Nagar, P.S. Fateh Nagar, Dist. Udaipur (Raj.)

---Respondent

For Petitioner(s) : Mr Bharat Devasi

For Respondent(s) : Mr J.V.S. Deora

HON'BLE DR. JUSTICE VIRENDRA KUMAR MATHUR

Judgment 24/08/2017 This Transfer Application under sec.24 CPC has been filed for transfer of Case No.63/2016 (Subhash v. Anju) filed by respondent under sec.13A of the Hindu Marriage Act, pending before the Family Court, Udaipur to the Family Court, Chittorgarh.

Briefly stated, marriage between the parties was solemnized on 27.02.2009 and two issues born out of the wedlock, one is about 7 years old and other is about 3 years old. The petitioner was harassed by the respondent and his family members in connection with demand of dowry. A complaint has been filed by the petitioner against the respondent under sec.498A, 406 IPC and after investigation, Police filed challan against the respondent and the case is pending before the Chief Judicial Magistrate, Chittorgarh for trial. The petitioner also filed an application under (2 of 3) [CTA-8/2017] sec.125 CrPC for maintenance before the Family Court, Chittorgarh. The respondent is also appearing in both the cases pending at Chittorgarh. In counter, the respondent has also filed an application (No.63/2016) under sec.13A of the Hindu Marriage Act before the Family Court at Udaipur for decree of divorce.

It was also contended that the respondent threatened the petitioner on many occasions to withdraw the criminal case filed against him as well as application for maintenance and as such, there is danger to life of the petitioner if she goes to attend the court for contesting case pending before the Family Judge, Udaipur. The petitioner is an unemployed lady and she has no independent source of income to travel and bear the expenses of contesting the case at Udaipur, which is 100 kms away from Chittorgarh. Under these circumstances, transfer of the case was sought from Udaipur to Chittorgarh.

Notices were issued to the respondent. After service power was filed on behalf of the respondent. No reply has been filed on behalf of the respondent to this Transfer Application.

Heard learned counsel for the parties.

Out of the wedlock, two children born, one is 7 years and the other is 3 years old. The petitioner alleged that the respondent and his family members harassed her over demand of dowry and a criminal case was filed under secs.498A, 406 IPC, in which after investigation challan was filed by Police and trial in that case is pending before the Chief Judicial Magistrate, Chittorgarh. The application for claiming maintenance under sec.125 CrPC was also filed before the Family Judge, Chittorgarh by the petitioner, which (3 of 3) [CTA-8/2017] is also pending. In both these cases, the respondent is appearing at Chittorgarh. The petitioner has contended that she has no independent source of income and it is not possible for her to bear the expenses of litigation and to contest the case at Udaipur, which is 100 kms away from Chittorgarh.

The counsel for the respondent has placed reliance on judgment of this Court in Tilotamma (Smt) v. Anoop Kumar:

2009(3) DNJ 1472. Perused the judgment. The decision in that case is not at all relevant in the facts and circumstances of the present case.

In the facts and circumstances, the convenience of the petitioner-lady is to be looked into, in view of ratio of the judgment of Hon'ble Supreme Court in Vaishali Shridhar Jagtap v. Shridhar Vishwanath Jagtap reported in 2016 (4) WLN 237 (SC) and it is a fit case to be transferred.

Accordingly, this Transfer Application is allowed and the Case No.63/2016 (Subhash v. Anju), filed by the respondent for divorce under sec.13A of the Hindu Marriage Act, pending before the Family Court, Udaipur is ordered to be transferred to the court of Family Court, Chittorgarh.

(DR. VIRENDRA KUMAR MATHUR), J.

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